

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

A proof of service for a summons that complies with statutory requirements creates a rebuttable presumption that service was proper. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025), §4:362, p. 66. "A declaration of service by a registered process server establishes a rebuttable presumption that the facts stated in the declaration are true." 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group), §4:367, p. 66, citing Evidence Code §647.

One of the manners of service authorized for summons and complaint is substituted service. C.C.P. §415.20(b) authorizes substituted service by delivery if a copy of summons and complaint to the dwelling place of the person intended to be served, leaving it "in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age", and thereafter mailing another copy to that same address, addressed to the person intended to be served.

Plaintiff has submitted evidence of valid substitute service. (Plaintiff's exhibits one and two.) The Court notes that the address where substitute service occurred is the same address that Defendant uses in filing the instant motion.

Defendant's declaration to the motion to set aside is insufficient to rebut the presumption that the service was proper. Defendant's declaration states that there was no personal service but fails to challenge proper substitute service.

Similarly, Defendant fails to set forth any other valid grounds to set aside and vacate default.

Defendant's motion to set aside default and default judgment is therefore denied.

TOWER NT, LLC vs. TANNER'S LEANFEAST 1, LLC; ET AL.
Case No. CU24-01197

LEANFEAST and TANNER's Motion for Compel Plaintiff's Further Responses to Requests for Production

TENTATIVE RULING

Defendants TANNER'S LEANFEAST 1, LLC and FRANCIS CARL TANNER IV ("Moving Defendants") move to compel Plaintiff TOWER NT, LLC to further respond to seven requests for production. This matter concerns alleged failure to pay rent on a commercial lease. Moving Defendants state that the material they seek to discover relates to Plaintiff's attempts to mitigate its damages from Moving Defendants' alleged nonpayment of rent.

The court first considers the adequacy of the moving parties' efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Moving Defendants' counsel's attached declaration states that Moving Defendants' counsel served the discovery requests at issue on March 11, 2026 and received Plaintiff's responses thereafter (Plaintiff's declaration states responses were served April 28, 2026). (Declaration of Noah Phillips in Support of Motion to Compel Further Responses to Requests for Production at ¶¶ 2-3.) Moving Defendants' counsel sent Plaintiff a meet and confer letter on April 30, 2026. (*Id.* at ¶¶ 6-7, Exhibit A.) On May 8 Plaintiff's counsel told Moving Defendants he would try to obtain the desired records via an informal process. (*Id.* at ¶ 11.) Moving Defendants filed the instant motion on May 11, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

Moving Defendants' meet and confer efforts were inadequate. While Moving Defendants' meet and confer letter properly explained the simple problem Moving Defendants perceived with Plaintiff's responses, Moving Defendants did not give Plaintiff an appropriate chance to address deficiencies. On May 8 Plaintiff stated it would attempt to obtain the material Moving Defendants sought but Plaintiff filed the instant motion only three days later rather than wait to see what Plaintiff delivered.

Though meet and confer efforts are assessed by the state of affairs prior to the filing of a motion to compel the court further observes that developments subsequent to filing illustrate the potential for informal resolution here. Plaintiff states that Moving Defendants were provided information and Plaintiff inquired if Moving Defendants were satisfied; Moving Defendants stated they were not but still did not attempt to resolve outstanding disputes informally, instead choosing to continue with this prematurely filed motion.

Moving Defendants' motion is denied on the basis of insufficient meet and confer efforts pre-filing.

ANTHONY SMITH vs. HARSHAD B. WADHAR, MD
Case No. CU24-07285

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three

TENTATIVE RULING